

[Under 44 & 45 Vict. c. 41, legal estate devolves to personal representative. — This enactment is, however, in the case of deaths occurring after the 31st December, 1881, repealed and its place supplied by a provision that “where an estate or interest of inheritance, or limited to the heir as special occupant, in any tenements or hereditaments, corporeal or incorporeal, is vested on any trust, or by way of mortgage (a), in any person solely, the same shall on his death, notwithstanding any testamentary disposition, devolve to and become vested in his personal representatives or representative from time to time, in like manner as if the same were a chattel real vesting in them or him; and accordingly all the like powers, for one only of several joint personal representatives, as well as for a single personal representative, and for all the personal representatives together, to dispose of and otherwise deal with the same, shall belong to the deceased’s personal representatives or representative from time to time, with all the like incidents, but subject to all the like rights, equities, and obligations, as if the same were a chattel real vesting in them or him; and for the purposes of this section the personal representatives for the time being of the deceased shall be deemed in law his heirs and assigns within the meaning of all trusts and powers” (b).]

[(a) By 37 & 38 Vict. c. 78, s. 4, the legal personal representative of a mortgagee of a freehold estate, or of a copyhold estate to which the mortgagee was admitted, was empowered on payment of all sums secured by the mortgage to convey or surrender the mortgaged estate. This section was held not to apply to a transfer of a mortgage of a freehold estate, *Re Spradbery’s Mortgage*, 14 Ch. D. 514; or to a sale by the executors, under a power in the mortgage deed, *Re White’s Mortgage*, 51 L. J. N. S. Ch. 856; and has in the case of a death occurring after the 31st December, 1881, been repealed by 44 & 45 Vict. c. 41, s. 30.]

[(b) 44 & 45 Vict. c. 41, s. 30; this section applies to copyholds, *Re*

*Hughes W. N.* 1884, p. 53. If upon the death, intestate, of a sole surviving trustee new trustees are appointed under the Trustee Acts, the vesting order should vest the trust estates in them “for the estate therein which would now be vested in (the intestate) if now living,” Set. on Dec., 4th Ed. p. 539; or “for all the estate and interest which the deceased trustee had in him immediately before (or at the time of) his death,” *Re Rackstraw’s Trusts*, 52 L. T. N. S. 612; 33 W. R. 559. Where the order was made vesting the property in the new trustees “for the estate therein now vested in the heir-at-law of the deceased trustee,” and letters of administration were subsequently taken out to the estate of the deceased trustee,